

[10 EDW. 7 &
1 GEO. 5.]

Havant Gas Act, 1910.

[Ch. cxi.]



CHAPTER cxi.

An Act to incorporate the Havant Gas Company and to enable that Company to supply gas in the urban district of Havant and other adjoining places.

A.D. 1910

[3rd August 1910.]

WHEREAS under and by virtue of an indenture dated the twenty-sixth day of October one thousand eight hundred and fifty-two certain persons (therein named) were formed into a joint stock company for the purpose of making and vending in the town and parish of Havant in the county of Southampton of gas coke and oil and for the purpose of carrying on all such business as is or may be usually carried on by gas companies by and under the title of the Havant Gas Company subject to and under the rules and regulations covenants conditions clauses and agreements in the said indenture contained:

And whereas the said Company were in the year one thousand eight hundred and seventy-nine duly registered in accordance with the provisions of the Companies Acts 1862 to 1877 by the name or style of the Havant Gas Company Limited:

And whereas by the Havant Gas Order 1879 confirmed by the Gas and Water Orders Confirmation Act 1879 powers were conferred upon the limited company to manufacture and store gas upon the lands described in the Second Schedule to this Act and to supply gas to and within the parishes of Havant and Bedhampton and part of the parish of Warblington all in the county of Southampton:

And whereas the share capital of the limited company authorised by the Order of 1879 consists of—

- (A) Three thousand pounds original capital entitled under the Order of 1879 to a standard dividend of ten per centum per annum;

[Price 2s. 3d.]

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(B) Ten thousand pounds additional capital entitled under the Order of 1879 to a standard dividend of seven per centum per annum;

the whole of which capital (with the exception of a sum of three thousand pounds additional capital which has not been issued) has been subscribed and fully paid up and the limited company have borrowed on mortgage of the gas undertaking the sum of two thousand five hundred pounds:

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient that such limits should be extended and that the Company should be authorised to raise additional capital:

And whereas it is expedient that the limited company should be dissolved and re-incorporated with further powers:

And whereas plans showing the lands which may be taken for the purposes or under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were deposited with the clerk of the peace for the county of Southampton and are herein-after respectively referred to as the deposited plans and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Havant Gas Act 1910.

Incorporation of Acts.

2. The following Acts and parts of Acts are hereby incorporated with this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Lands Clauses Acts;

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The Gasworks Clauses Act 1847 except sections 30 to 34 both inclusive Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section And provided further that section 35 of the said Act shall be read as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the standard rates of dividend or such rates as reduced or increased in accordance with the provisions of this Act; and

The Gasworks Clauses Act 1871.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And (unless the subject or context otherwise requires)—

Interpreta-
tion.

The expression "the limited company" means the Havant Gas Company Limited;

The expression "the Company" means the Company incorporated by this Act;

The expressions "the gasworks" and "the gas undertaking" respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company;

The expression "the Order of 1879" means the Havant Gas Order 1879 confirmed by the Gas and Water Orders Confirmation Act 1879.

4. The limits of this Act for the supply of gas (hereinafter referred to as "the limits of supply") shall be the limits as defined by the Order of 1879 together with so much of the parish of Idsworth as lies within one mile of the northern boundary of such limits All of which limits are more particularly described in the First Schedule to this Act and are defined upon a map signed by the Right Honourable the Earl of Onslow the

Gas limits.

A.D. 1910. Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited at the Parliament Office of the House of Lords one copy at the Private Bill Office of the House of Commons and one copy at the office of the Company and if there should be any difference between the description contained in this section and the area defined upon such map the latter shall prevail.

Repeal of
Order of
1879.

5. Subject to the provisions of this Act the Order of 1879 and so much of the Act confirming the same as relates thereto are hereby repealed.

INCORPORATION.

Incorporation of Company.

6. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes in this Act mentioned and shall be incorporated by the name of "The Havant Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General purposes of Company.

7. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the limited company and of manufacturing and storing gas and of supplying gas for lighting heating motive power warming ventilating and any other purposes for which gas is or may be used within the limits of this Act and for converting or utilising and distributing materials used in and about the manufacture of gas and of residual products resulting from such manufacture and for dealing in selling and disposing of gas coke lime tar chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas and for carrying on the business usually carried on by gas companies.

Present property of limited company vested

8. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited

company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas stoves fires cookers gas fittings lamp posts syphons apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act and which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

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in Company
incorporated
by this Act.

9. Subject to the provisions of this Act the rules and regulations referred to in the above recited deed of settlement of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said rules and regulations incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Regulations
of limited
company to
be void
without pre-
judice to
remedies for
antecedent
breaches
thereof.

10. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said rules and regulations had not been

Nothing to
affect pre-
vious rights
and lia-
bilities.

A.D. 1910. avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company had not been incorporated and the said regulations were not avoided by this Act and this Act had not been passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of shares or stock therein and the property of the Company shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts
prior to
Act to be
binding.

11. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

12. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the holders of shares or stock therein being in reference to

the matters aforesaid in all respects substituted for the limited company and its members respectively. A.D. 1910.

13. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put to by reason of his having entered into such bond covenant contract or engagement.

Trustees of
limited com-
pany to be
indemnified.

14. From and after the passing of this Act the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company or their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Company
to satisfy
liabilities
of limited
company.

15. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of
gas rents &c.

16. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

As to pay-
ment of debts
owing before
passing of
Act.

17. Notwithstanding the avoidance of the said rules and regulations all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the

Certificates
&c. to remain
in force.

A.D. 1910. limited company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c.
continued
evidence.

18. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue
until re-
moved.

19. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

20. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and be taken and considered as the register of holders of shares required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

CAPITAL.

Capital.

21. The capital of the Company shall be twenty-two thousand pounds in four thousand four hundred shares of five pounds each Such capital shall consist of—

- (1) Three thousand pounds to be called "A" ordinary shares :
- (2) Seven thousand pounds to be called "B" ordinary shares (and the said amounts of three thousand pounds and seven thousand pounds are in this Act called "the original capital") :
- (3) Twelve thousand pounds (in this Act called "the additional capital") to be raised in manner herein-after mentioned and called "C" ordinary shares.

Vesting of
shares in
present
shareholders.

22.—(1) The "A" ordinary shares shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of the six hundred shares issued under the authority of the recited Order of 1879 in

proportion to the amount of such shares held by them respectively A.D. 1910.
The "B" ordinary shares shall be similarly divided among and
vested in the several persons who immediately before the passing
of this Act were registered as holders of the one thousand
four hundred shares issued under the authority of the aforesaid
Order.

(2) All shares so vested shall be deemed to be fully paid
up and shall be subject and liable to the same trusts powers
provisions declarations agreements charges liens and encumbrances
as immediately before the passing of this Act affected the shares
or share in respect of which such shares are so vested and so
as to give effect to and not revoke any agreement deed or other
instrument or any testamentary disposition of or affecting such
shares or share and every agreement deed or other instrument
or testamentary disposition made before the passing of this Act
and affecting any shares or share in the limited company shall
take effect with reference to the whole or a proportionate part as
the case may be of the shares substituted therefor and trustees
executors or administrators or persons under disability may accept
the shares to be substituted for the shares in the capital of the
limited company held by them and may subject to the provisions
of this Act retain dispose of or otherwise deal with the same
as fully and freely in all respects as they might have retained
disposed of or otherwise dealt with such shares in the capital of
the limited company.

23. The Company shall call in and cancel the existing
certificates of shares in the limited company and issue in lieu
thereof certificates for the shares to which the holders of such
shares are respectively entitled but the holders of such existing
certificates of shares shall not be entitled to any certificates of
proprietorship under this Act until they shall have delivered up
to the Company to be cancelled the certificates of proprietorship
issued to them before the passing of this Act or shall have
proved to the reasonable satisfaction of the Company the loss or
destruction thereof but if any holder of any existing share or
shares of the limited company neglect or omit to send or deliver
to the Company his existing certificate or certificates for the
period of one year after notice in writing sent by post to the
address appearing in the shareholders' address book the Company
may retain any dividend declared or made payable upon or in
respect of the shares so held by him until such existing certificate

Company to
call in and
cancel exist-
ing share
certificates
and issue
new certifi-
cates in lieu
thereof.

A.D. 1910. or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed.

Register of
limited com-
pany to be
evidence.

24. The several persons whose names at the date of the passing of this Act appear in the register of members of the limited company to be the holders of shares in the capital of that company shall be considered to be holders of shares in the capital of that company for the purpose of vesting in and issue to them of the new shares in the capital of the Company in accordance with the provisions of this Act and the secretary of the limited company shall on or before the date of the passing of this Act deliver to the secretary of the Company at the principal office of the Company a correct copy of the said register and on and after that date the register of transfers of shares of the limited company shall be closed and no transfer of any shares made on or after that date shall as between the Company and the party claiming thereunder be of any effect and the issue by the Company of certificates of new shares of the Company as aforesaid to the persons whose names appear by the copy of such register so furnished to them to be the registered holders of shares in the capital of the limited company shall be a sufficient discharge to the Company.

Transfer
of shares
although
by present
name to be
valid.

25. All transfers or other dispositions of shares in the capital of the limited company existing up to the date of the passing of this Act shall notwithstanding this Act be valid and have due effect given to them respectively as transfers of the respective amounts of new shares which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of new shares issued in substitution for such shares under the provisions of this Act.

Power to
create a
special pur-
poses fund.

26.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up

capital of the Company including premiums to a fund to be called "the special purposes fund." A.D. 1910.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the limited company at the passing of this Act shall be carried to the credit of the special purposes fund created by this Act.

27. Where in any year the dividends on the ordinary shares of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company may be invested in Government or other securities and the dividends and interest arising from such securities may

Power to create a reserve fund out of dividends in excess of authorised rate of dividend and application thereof.

A.D. 1910. — also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called “the reserve fund” and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary shares of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

The money or securities standing to the credit of the reserve fund of the limited company at the passing of this Act shall be carried to the credit of the reserve fund created by this Act.

ADDITIONAL CAPITAL.

Power
to raise
additional
capital.

28. The Company may from time to time raise additional capital not exceeding in the whole twelve thousand pounds by the creation and issue at their option of new ordinary shares to be called “C ordinary shares” or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share created under the authority of this Act of less nominal value than five pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twelve thousand pounds. Provided that the Company shall not raise by the issue of preference capital a greater amount of such additional capital than six thousand pounds.

Shares or
stock to be
sold by
auction or
tender.

29.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued (other than the A ordinary shares and one thousand four hundred of the B ordinary shares to be divided as in this Act mentioned) shall be offered for sale by public auction or tender in such manner at

such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows :— A.D. 1910.

(A) Notice of the intended sale shall be given in writing to the clerk to each district council whose district contains any parts of the limits of supply of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply :

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares or stock or preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the

A.D. 1910. aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

LIMITATION OF PROFITS.

Profits of
company
limited.

30. Except as by this Act provided the profits of the Company to be divided among the shareholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") namely:—

On the "A" shares the rate of ten pounds in respect of every one hundred pounds credited as paid up thereon:

On the "B" shares the rate of seven pounds in respect of every one hundred pounds credited as paid up thereon:

On the additional capital authorised by this Act to be raised the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Application of
profits when
insufficient
to pay full
amount of
dividends at
authorised
rates.

31. In case in any year the net revenues of the Company applicable to dividend are insufficient to pay the full amount of dividend at the authorised rate on each class of ordinary shares in the capital of the Company a proportionate reduction shall be made in the dividend in such class.

32. If the clear profits of the undertaking of the Company amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year. Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rate.

A.D. 1910.
Application
of excess of
profits over
authorised
rate of
dividend.

BORROWING POWERS.

33. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of two thousand five hundred pounds already borrowed by the limited company) one third part of the amount of the capital of the Company at the time actually issued by shares or stock but no part thereof (other than a sum equal to one third part of the original capital of the Company) shall be borrowed until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premiums (if any) realised on the sale thereof have been fully paid up.

Power to
borrow.

34. All mortgages granted by the limited company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing
mortgages
to have
priority.

35. The mortgagees or debenture holders of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages or debentures by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees or debenture holders by whom the application for a receiver is made shall not be less than one-tenth of the aggregate amount for the time being owing by the Company on mortgage and debenture.

For appoint-
ment of a
receiver.

A.D. 1910.

Debenture
stock.

36. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be stated in all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts &c.

37. All moneys raised on mortgage by the Company under this Act and all moneys continued on mortgage of the undertaking and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Application
of money.

38. All moneys raised under this Act or the Order of 1879 including any premium shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend:

Provided that in any case where a power to raise money by borrowing or to create a special purposes fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

MEETINGS.

A.D. 1910.

39. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

First ordinary meeting.

40. The quorum of general meetings shall be shareholders personally present not being less than seven in number and holding or representing by proxy not less than one twentieth part of the capital of the Company for the time being issued and entitling the holders to vote in respect thereof.

Quorum of general meetings.

41. The prescribed scale of voting shall be one vote for five shares or any less number and an additional vote for every five shares beyond the first five but no member shall have more than ten votes and except as otherwise provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Scale of voting and restriction as to votes in respect of preference shares or stock.

DIRECTORS.

42. The number of directors shall be six but the Company may vary the number provided that the number be not at any time more than seven or less than five.

Number of directors.

43. The qualification of a director shall be the possession in his own right of not less than twenty shares.

Qualification of directors.

44. The quorum of a meeting of directors shall be three.

Quorum of directors.

45. William Renny Harry Clarke James Roffey C.B. Herbert Richards and Alfred Edwin Stallard shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses

First directors.

Election of directors.

A.D. 1910. Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

Contracts
not to dis-
qualify for
office of
director.

46. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any contract or the remuneration attached to any such office or place of trust or profit.

WORKS AND LANDS.

Powers as to
maintenance
and construc-
tion of gas-
works.

47. Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue the existing gasworks of the limited company upon the lands on which the same are erected or any part thereof being the lands described in the Second Schedule to this Act or any part or parts thereof respectively and may erect lay down make maintain alter improve enlarge extend and renew or discontinue works for the manufacture of gas and convert or utilise and distribute materials used in and about the manufacture of gas and of residual products resulting from such manufacture and upon those lands they may accordingly manufacture gas and manufacture convert utilise and distribute such materials and residual products as aforesaid and may also on those lands store gas and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew or discontinue drains sewers mains pipes meters lamps lamp posts burners stop cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas within the limits of this Act and may subject to the provisions of this Act supply gas accordingly and may manufacture convert store sell supply and deal in gas coke patent fuel tar pitch asphaltum lime ammoniacal oil sulphate of ammonia chemicals and all other products or residuals of any materials in or arising from the manufacture of gas and matters producible therefrom and carry on the business usually carried on by gas companies or by

companies or persons dealing in any of the matters and things
aforesaid. A.D. 1910.

48. For the purpose of erecting a manager's house and for storage purposes the Company may enter upon take and use all or any of the lands delineated upon the deposited plans and described in the deposited book of reference by the numbers 2 and 3 as may be required for or in connection with the purposes of this Act. Power to take lands.

49. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Southampton for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Southampton and a duplicate thereof shall also be deposited with the clerk to the urban district council of Havant in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk to the urban district council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate. Correction of errors &c. in deposited plans and book of reference.

50. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

51. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the other lands which they are authorised to hold any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or Power to purchase lands by agreement.

A.D. 1910. permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Power to sell
or lease
lands.

52. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell or let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

For pro-
tection of
Southamp-
ton County
Council.

53. In executing the works and exercising the powers by this Act authorised so far as they affect main roads and county or main road bridges of the county of Southampton the following provisions for the protection of the county council of the administrative county of Southampton (in this section called "the county council") shall unless otherwise agreed have effect (that is to say):—

- (1) All pipes and other works to be laid in or along any main road or in upon or across any county or main road bridge (which word shall in this section include bridge approaches) shall be laid in such position and if under the metalled portion thereof at such depth as the county council in writing under the hand of their clerk may reasonably require:
- (2) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by the eighth section of that Act shall be not less than seven days instead of three days:
- (3) The plan required by the ninth section of the said Act shall be accompanied by a description of the proposed works in the case of any main road and by a section in the case of any county or main road bridge and shall be delivered to the county council or their surveyor by the Company not less than fourteen days before they commence to open or

break up any main road or interfere with any county or main road bridge for the purpose of executing the works: A.D. 1910.

(4) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine:

(5) Any alteration repair or improvement of any main road or any county or main road bridge or any alteration of or in the position of the same may be made as if this Act had not been passed and if any such alteration repair or improvement necessitates any alteration either temporary or permanent in the level or position of any of the works by this Act authorised to be made or placed in over or through any of the roads or bridges aforesaid or necessitates any support either temporary or permanent to any such works the Company shall after fourteen days' notice in writing by the clerk of the county council forthwith make such alteration or afford such support at their own expense:

(6) All works of the Company so far as they affect any main roads or county or main road bridges shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge and the Company shall not open or break up at any one time a greater length than one hundred yards of any road:

(7) The Company shall pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any main road or of the road over any county bridge in which the pipes of the Company are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes:

A.D. 1910.

(8) If any difference arise at any time between the county council and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by an engineer as arbitrator to be agreed on between the county council and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any arbitration under this subsection.

For protec-
tion of Lon-
don and
South Wes-
tern and
London
Brighton and
South Coast
Railway
Companies.

54. For the protection of the London and South Western Railway Company and the London Brighton and South Coast Railway Company (herein-after together referred to as "the railway companies") the following provisions shall have effect:—

- (1) All works executed in pursuance of this Act or of any Act incorporated therewith and involving interference with or in any way affecting the railways bridges roads approaches level crossings works lands and property of the railway companies (herein-after together referred to as "the railways of the railway companies") and all works of maintenance repair renewal and removal involving such interference and affection (the said works executed in pursuance of this Act or of any incorporated Act and the said works of maintenance repair renewal or removal being herein-after referred to as "the said works") shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway companies as the case may be (herein-after referred to as "the engineer") and according to plans to be previously submitted to and approved by the engineer in writing within one month after such submission or in case of difference as may be determined by arbitration in manner herein-after provided:
- (2) The said works shall be done by and at the expense of the Company who shall restore and make good to the reasonable satisfaction of the engineer any portion of the railways of the railway companies which may be

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disturbed or interfered with and the said works shall be carried out so as to cause as little injury as may be to the railways of the railway companies and so as not to cause any interference with the passage or conduct of traffic thereover nor alter the existing level of any roadway over or under any bridge or prevent any improvement or widening of the railways of the railway companies or of any bridge or the introduction of side openings to such bridge Provided that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the railway companies may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions herein-before contained as far as the same may be applicable thereto Provided also that if the engineer shall think it necessary that the said works or any of them shall be done or carried out by the railway companies and shall notify such desire to the Company the said works in respect of which the engineer shall have notified such desire shall be done or carried out by the railway companies accordingly at the cost of the Company:

- (3) The Company shall give one month's notice in writing to the railway companies before commencing any work affecting the railways of the railway companies or within 10 yards of the railway companies' boundary:
- (4) The Company shall bear and on demand pay to the railway companies all costs of the superintendence by the engineer of the said works when the same are done or carried out by the Company and all proper costs of watching lighting and protection of the railways of the railway companies during the carrying out of the said works but such superintendence by the railway companies shall not relieve the Company from liability for any accident which may be occasioned by or through the said works or by their contractors agents or workmen:
- (5) If any injury or interruption of traffic shall arise from or be in any way owing to the said works or to the

A.D. 1910.

bursting leakage or failure of any conduits mains pipes apparatus or works of the Company the Company shall make full compensation to the railway companies in respect thereof :

- (6) The Company shall from time to time pay to the railway companies any additional expense which the railway companies may incur in effecting any repair renewal widening alteration or extension of the railways of the railway companies by reason of the existence of any conduits mains pipes apparatus or works of the Company in over upon across or under the railways of the railway companies :
- (7) The railway companies may at any time or times hereafter upon giving to the Company not less than seven days' notice thereof in writing signed by the engineer call upon the Company to divert or alter the level of any conduit main pipe apparatus or other work of the Company passing in over upon across or under or in any way affecting the railways of the railway companies so as to admit of any repairs renewals widenings alterations or extensions of the railways of the railway companies which they may think necessary without being liable to pay the costs of such diversion or alteration or to pay any compensation in respect thereof :
- (8) Notwithstanding anything contained in this Act or in any Act incorporated therewith the Company shall not enter upon take or use for any purpose the railways of the railway companies or any part thereof without the consent in writing of the railway companies first obtained :
- (9) Any dispute or difference which may arise between the Company and the railway companies with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration under the Arbitration Act 1889 by an engineer to be agreed upon between the Company and the railway companies or failing agreement by an engineer to be appointed by the Board of Trade on the application of the Company and the railway companies or any of them.

SUPPLY OF GAS.

A.D. 1910.

55.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges cookers pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

Power to
supply gas
fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

56. The standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall be four shillings per thousand cubic feet:

Dividends
dependent
on price
charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the rate of dividend on the ordinary share capital as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company for that year shall in respect of each penny or part of a penny by which the standard price shall have been so increased be reduced below the standard rates of dividend by five shillings upon every one hundred pounds of "A" ordinary shares by three shillings and sixpence on every one hundred pounds of "B" ordinary shares and by three shillings and sixpence upon every one hundred pounds of "C" ordinary shares and so in proportion for any fraction of one hundred pounds;

In respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the

A.D. 1910.

Company for that year may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates of dividend by five shillings on every one hundred pounds of "A" ordinary shares by three shillings and sixpence on every one hundred pounds of "B" ordinary shares and by three shillings and sixpence upon every one hundred pounds of "C" ordinary shares and so in proportion for any fraction of one hundred pounds:

Provided that if in any year the dividend payable shall comprise a fractional amount less than one-eighth per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Charges for
gas supplied
by means of
prepayment
meters.

57.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the

quantity of gas supplied is regulated according to the amount of money prepaid therefor. A.D. 1910.

58. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company on the lands described in the Second Schedule to this Act before supplying or within three months after beginning to supply gas under the authority of this Act. Testing place.

59. The prescribed number of candles shall be not less than fourteen. Quality of gas.

60.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

61.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is

A.D. 1910. supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

62. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Power to lay pipes in streets not dedicated to public use.

63. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Power to hold licences under letters patent.

64. The Company may take hold and use within the limits of this Act patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid.

Consumers of gas to give notice to Company before removing.

65. At least twenty-four hours' notice in writing shall be given to the Company by every consumer of gas before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of this enactment shall be endorsed on every demand note for gas charges payable to the Company.

Power to refuse supply to persons in debt for other premises.

66. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

67. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

68. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

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Period of
error in de-
fective
meters.

69. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond their limits of supply.

Company
may contract
with local
authority &c.
for supply in
bulk.

70. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluc-
tuators for
gas engines.

71. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains

A.D. 1910.

and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

MISCELLANEOUS.

A.D. 1910.

72. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to lay down and utilise pipes for ancillary purposes.

73. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of any meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company to pay interest on money deposited as security for appliances fittings &c.

74. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands in county court.

75. The Company may upon any lands for the time being belonging or leased to them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Company for the purposes of their undertaking.

Dwelling-houses for workmen.

76. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of Act to be registered.

A.D. 1910.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

Costs of Act.

77. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

SCHEDULES referred to in the foregoing Act.

A.D. 1910.

THE FIRST SCHEDULE.

LIMITS OF SUPPLY.

The parishes of Havant and Bedhampton and so much of the parish of Warblington as lies to the west of an imaginary straight line drawn from a point upon the northern shore of Langstone Harbour situate three hundred and ninety-eight yards to the east of the southern end of Pook or Puck Lane in the parish of Warblington aforesaid (which lane leads from the northern end of Langstone Harbour aforesaid to the main road between Havant and Emsworth) in a northerly direction to the Rowland's Castle Station of the London and South Western Railway Company situate in the parish or tithing of Idsworth together also with so much of the parish or tithing of Idsworth as lies within a radius of one mile from the northern boundary of the parish of Havant.

THE SECOND SCHEDULE.

GAS LANDS.

All those pieces or parcels of land lying on the north side of and adjoining the London and South Western Railway and having a frontage of 300 feet or thereabouts to New Lane in the urban district of Havant and being in the occupation of the Company and used by them for the gasworks purposes.

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